



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 6538 (EXTENSION)
FIFTH REVISION March 25, 1985

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 6538 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to February 28, 1998. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

for Marilyn J. Morris
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

MAR 29 1986
(DATE)

Dist: FHWA USCG

EXEMPTION HOLDER

APPLICATION DATE

Pan Products, Inc.
Macedonia, OH

February 15, 1996

Expired
Renewal Application with drawer
4/16/98



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**DOT-E 6538
(FIFTH REVISION)**

1. Pan Products, Inc., Macedonia, Ohio, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages prescribed herein of a certain flammable gas for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes use of a non-DOT Specification inside nonrefillable metal container, and provides no relief from any regulation other than as specifically stated. Each of the following is hereby granted the status of a party to this exemption:

Hanco International, Inc., North Miami Beach, FL - PTE-1

Optimus, Inc., Bridgeport, CT - PTE-2

Beltronic Marketing, Dorval, Quebec, Canada - PET-3

Precise International, Suffern, N.Y. - PTE-4

2. BASIS. This exemption is based on Pan Products, Inc.'s application dated January 24 and June 7, 1984, submitted in accordance with 49 CFR 107.105 and 107.103 and the public proceeding thereon. The granting of party status is based on the following application submitted in accordance with 49 CFR 107.111, 107.105 and the public proceeding thereon:

Hanco International, Incorporated's application dated May 22, 1984

Optimus, Incorporated's application dated June 15, 1984

Beltronic Marketing's application dated June 22, 1984

Precise International's application dated Sept. 11, 1984 and Feb. 6, 1985

3. HAZARDOUS MATERIALS (Descriptor and class). Butane, butane-propane mixture having vapor pressure at 130° F. below 105 psig, classed as flammable gas.

4. PROPER SHIPPING NAME (49 CFR 172.101). Butane or liquefied petroleum gas, as appropriate.

5. REGULATION AFFECTED. 49 CFR 173.304(d)(3)(ii), 178.33.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle and cargo vessel.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a non-DOT specification inside metal container having a water capacity of 31.83 cubic inches or less, and meeting all requirements of Section 173.304(d)(3)(ii) and 178.33 except that:

a. Inside diameter exceeds 3 inches but must not exceed 3.400 inches.

b. The minimum wall thickness in all areas must be 0.010 inch, except in the area at the lower end of the three indentations in the sidewall at the top of the can. In this area the thickness must be at least 0.0079 inch.

- c. Maximum fill density must be as specified in 49 CFR 173.304(d).
- d. Pressure in the container must not exceed 35 psig at 70°F. and 100 psig at 130°F.
- e. Inside containers must not be marked "DOT 2P" but, instead, must be marked "DOT-E 6538."

8. SPECIAL PROVISIONS.

- a. Persons who receive packages covered by this exemption may reship them pursuant to the provisions of 49 CFR 173.22a.
- b. A copy of this exemption must be carried aboard each vessel used to transport packages covered by this exemption.
- c. Packages specified herein marked "DOT-E prior to the issuance of this exemption may be transported under the terms of this exemption.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Regulation as soon as practicable.

10. EXPIRATION DATE. June 30, 1986.

Issued at Washington, D.C.:

MAR 25 1985



Alan I. Roberts
Associate Director for
Hazardous Materials Regulation
Materials Transportation Bureau

(DATE)

Address all inquiries to: Associate Director for Hazardous Materials Regulation, Materials Transportation Bureau, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C., 20590. Attention: Exemptions Branch.

Dist: USCG, FHWA